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Conservatorship of Sabino Munoz Gomez

25PR000069

REVIEW – 1ST YEAR

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on June 09, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Estate of Rickey Samuel James Cypher

25PR000118

STATUS HEARING RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. Pursuant to Probate Code section 12200, a personal representative is required to either petition for an order for final distribution of the estate or make a report of status of administration not later than one year after the date of issuance of letters. There is no petition for final distribution or status report on file. Appearance is required to show the condition of the estate, the reasons why the estate cannot be distributed and closed, and an estimate of time needed to close administration of the estate. (Prob. Code, § 12202, subd. (a).)

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Jane Doe v. Joseph Tolfree et al

23CV000759

APPLICATION TO CONTINUE TRIAL

TENTATIVE RULING: The motion is DENIED. The Clerk is directed to STRIKE from the file that version of the Ex Parte Application filed under seal on June 29, 2026.

Defendant Duffy's Napa Valley Rehab (Duffy's) applies for an order continuing the August 3, 2026, trial date in this matter to November 21, 2026, or a date thereafter, and to reset all deadlines from the continued trial date. Duffy's makes its application on grounds that it needs additional time "to obtain discovery from previously undisclosed medical providers relating to plaintiff's damage claims." (Ex Parte Application at 1:23-2:2.)

A. NO SHOWING IS MADE TO FILE THE EX PARTE APPLICATION UNDER SEAL

On June 29, 2026, Duffy's submitted redacted and unredacted versions of its ex parte application. The unredacted version has the following stamped across the top of each page,

“CONFIDENTIAL: FILED UNDER SEAL PURSUANT TO PROTECTIVE ORDER AND WITHOUT FURTHER SEALING ORDER REQUIRED.” Based on this, the Court Clerk filed the unredacted version under seal.

As the Court has repeatedly informed the parties to this action, however, the First Amendment provides the public its right of access to ordinary civil trials and proceedings. (*NBC Subsidiary (KNBC-TV), Inc. v. Super. Ct.* (1999) 20 Cal.4th 1178, 1212 (*KNBC-TV*)). These rights are protected through the Rules of Court. “Unless confidentiality is required by law, court records are presumed to be open.” (Rules of Court, rule 2.550, subd. (c).) “The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” (*Id.* at subd. (d); see also *KNBC-TV*, *supra*, at 1217-18.) “A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (*Id.* at rule 2.551, subd. (b)(1).)

Based on the foregoing rules, the Court is affirmatively required to identify facts, which are supported by an evidentiary showing, upon which any such order is based – including facts supporting an interest in sealing the records that overrides the public’s interest in accessing them. (See *In re Marriage of Nicholas* (2010) 186 Cal.App.4th 1566, 1576.)

Duffy’s has not moved to seal the unredacted version of the Application and has not made a showing as to any of the foregoing.

The redacted material at issue does not appear limited to Plaintiff’s identity and other matters that the Court has previously ruled on. Rather, every exhibit to the Declaration of Alexander M. Farkas, Esq., including, inexplicably, a ruling by the Discovery Referee appointed by the Court in the matter, has been redacted, in the entirety, and filed under seal without any showing. (See, *e.g.*, *id.* at ¶ 8, Exh. E.)

Based on the foregoing, the Court finds that the unredacted version of the Application filed on June 29, 2026, was not “filed in conformity with the laws of this state, a court rule, or an order of the court” and the Clerk to direct to strike it from the Court’s files. (Code Civ. Proc., § 436, subd. (b).)

B. DUFFY’S MAKES NO SHOWING JUSTIFYING A FURTHER CONTINUANCE OF THE TRIAL DATE

The Court has a statutory “responsibility to eliminate delay in the progress and ultimate resolution of litigation, to assume and maintain control over the pace of litigation, to actively manage the processing of litigation from commencement to disposition, and to compel attorneys and litigants to prepare and resolve all litigation without delay, from the filing of the first document invoking court jurisdiction to final disposition of the action.” (Govt. Code, § 68607.)

In fulfilling these responsibilities, the Court “shall...[a]dopt and utilize a firm, consistent policy against continuances, to the maximum extent possible and reasonable, in all stages of the litigation.” (*Id.* at subd. (g).) Therefore, a party moving for a continuance must show good cause requiring the continuance. (*Ibid.*)

“To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain.” (Cal. Rules of Court, rule 3.1332, subd. (a).) Continuances are disfavored and the Court may only grant a continuance “on an affirmative showing of good cause *requiring* the continuance.” (See *id.* at subd. (c). Emphasis added.)

Duffy’s argues that the requested continuance is appropriate based on its inability to complete discovery. Duffy’s contends that it has been unable to obtain “complete mental-health history and psychotherapy records that plaintiff has withheld since August 2024.” (Declaration of Alexander M. Farkas, Esq. at ¶¶ 4-11 (Farkas Decl.)) Duffy’s explanation, however, fails to adequately explain the asserted “inability” to obtain these records. The Civil Discovery Act provides specific means for obtaining relief where a responding party fails to honor its discovery obligations. In the Court’s experience, two years is more than adequate time for a party to avail themselves of these means.

Duffy’s argues that a number of other discovery issues remain unresolved. Duffy’s fails, however, to establish that, despite Duffy’s diligence, the issues could not have been resolved. For example, Duffy’s indicates that it “has begun serving deposition notices on plaintiff’s non retained expert witnesses – 23 providers.” (Farkas Decl. at ¶ 14.) That Duffy’s has only “begun” serving these notices at this point in the litigation does not suggest that it has proceeded with all diligence in doing so. The Court is unable to fully analyze the remainder of Duffy’s assertions because of the global redaction of every exhibit attached to the Farkas Decl.

The Court notes that Summons was served on Duffy’s in this action over three years ago. Moreover, the trial date has already been continued three times; last at Duffy’s request by Court Order of December 4, 2025.

Based on the foregoing, Duffy’s fails to make “an affirmative showing of good cause requiring continuance of trial.” (See Cal. Rules of Court, rule 3.1332(c).) The Application is, therefore, DENIED.

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Joel V. Benson v. Lisa Benson et al

25CV001556

MOTION OF PLAINTIFF JOEL V. BENSON FOR ORDER APPOINTING APPRAISER

TENTATIVE RULING: The matter is CONTINUED to August 14, 2026, at 8:30 a.m. in Dept. A.

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In The Matter of Bob Miranda Neal

26CV000926